competent to the person who paid the money to put a different construction upon the instrument at any subsequent period, and claim the estate against his intentions at the time (*a*); and even if under such circumstances the legal tenant agreed afterwards to execute a conveyance to the person who paid the money, the Court would not enforce the contract, if merely voluntary (*b*).

17. **Effect of time.** — The real purchaser may be barred of his interest by laches, for the presumption of a resulting trust will not be raised, after a great length of time, more particularly if it be in opposition to the evidence afforded by the actual enjoyment (*c*).

Secondly: Where the purchase is made by a person in the name of a child, or wife, or near relative.

Advancement. — Where a father purchases in the name of his child, the presumption of law is, that a provision was intended (*d*). The grounds of this doctrine are well stated by Lord Chief Baron Eyre (*e*).

(*a*) Groves *v.* Groves, 3 Y. & J. 172, *per* Alexander, C. B.

(*b*) Groves *v.* Groves, 3 Y. & J. 163.

(*c*) Delane *v.* Delane, 7 B. P. C. 279; and see Groves *v.* Groves, 3 Y. & J. 172; Clegg *v.* Edmondson, 8 De G. M. & G. 787.

(*d*) Dyer *v.* Dyer, 2 Cox, 93; S. C. 1 Watk. Cop. 219, *per* Eyre, C. B.; Grey *v.* Grey, 2 Swans. 597; S. C. Finch, 340, *per* Lord Nottingham; Sidmouth *v.* Sidmouth, 2 Beav. 454, *per* Lord Langdale; Redington *v.* Redington, 3 Ridg. 176, *per* Lord Loughborough; Christy *v.* Courtenay, 13 Beav. 96; Elliot *v.* Elliot, 2 Ch. Ca. 231, agreed; Bedwell *v.* Froome, cited 2 Cox, 97, and 1 Watk. Cop. 224, *per* Sir T. Sewell; Goodright *v.* Hodges, 1 Watk. Cop. 228, *per* Lord Mansfield; Pole *v.* Pole. 1 Ves. 76, *per* Lord Hardwicke; Lamplugh *v.* Lamplugh, 1 P. W. 111, 2nd point; Woodman *v.* Morrel, 2 Freem. 33, *per cur.*; Murless *v.* Franklin, 1 Sw. 17, 18, *per* Lord Eldon; Finch *v.* Finch, 15 Ves. 50, *per eundem*; Fearne's P. W. 327, &c. [" Where money is paid by one man to another, the legal presumption is that it was paid in discharge of some prior debt or obligation, and not that it was meant as a gift; and if money is paid by a father to a son, and nothing beyond the fact of payment is proved, there is no legal obligation on the son to repay it, and the equitable doctrine that there is a presumption that moneys advanced by a father to a son are intended as a gift has no application. The onus of proof is in the person who claims repayment to show that there was some contract rendering the payee liable to repay the money," *per* Jessel, M. R., *Ex parte* Cooper, W. N. 1882, p. 96.]

(*e*) Dyer *v.* Dyer, 2 Cox, 94; S. C. 1 Watk. Cop. 218; and see Lord Nottingham's observations in Grey *v.* Grey, 2 Sw. 598.